

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Joint Appendix Cover, Index, and Certification

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed March 9, 2026

Blue Ember and Granite Heron jointly submit this counterfactual appendix index solely for the isolated express-preservation exercise. The appendix uses the complete synthetic district record and a separately segregated record-variation order. The variation is not placed inside any district document, and no entry on this never-filed docket can establish what happened in the actual proceedings.

The indexed district collection contains forty-two documents and 430 consecutively allocated pages. It begins with the complaint and ends with the January 13, 2026 record certificate. Titles, dates, actors, scientific identifiers, financial figures, and source relationships remain those certified by the fictional district clerk.

The four-page variation follows the actual and counterfactual appellate allocations rather than changing the lower-record pagination. It supplies only the assumed mitigation language, renewal, notice, and opportunity to cure described in the February 2 order. Counsel agree that the jury verdict, two judgments, and posttrial chronology are otherwise unchanged.

Pleadings and transaction instruments

The opening materials are Blue Ember's December 2, 2024 Complaint and Granite Heron's December 30 Answer. They identify the parties, shipment GHL-ASH-091224-087, validation lot BE214-VL-2409A, the Fletcher temperature event, the quality disposition, the replacement path, and the disputed Cobalt Finch mitigation opportunity.

Five integrated commercial sources follow. They include the general logistics agreement; the BE-214 shipment-specific cold-chain statement; the quality and temperature-control protocol; the purchase order with release specification; and the rate confirmation governing custody. Their original execution dates remain controlling even though they later became litigation exhibits.

Those instruments assign Blue Ember product-release authority and Granite Heron transport, equipment, monitoring, response, and recordkeeping duties. They set a continuous minus-eighty to minus-sixty degree band, use a minus-seventy setpoint, identify the Greenville origin and Asheville destination, and permit controlled Fletcher staging only while environmental protection continues.

The index authenticates organization, not legal effect. Granite Heron preserved contract-limit and causation defenses, while Blue Ember relied on shipment-specific controls and declared value. The counterfactual preservation premise concerns the later mitigation motion and does not modify a signature, specification, duty, cargo term, or admission within these sources.

Discovery and retained-opinion materials

The discovery segment begins with the February 28 Rule 26 disclosures. Organizational depositions follow for Blue Ember through Dr. Mira Solis and Granite Heron through Adrian Locke. Tess Holloway's transport-operations deposition supplies the minute-by-minute Fletcher sequence, and Dr. Nia Calder's testimony describes Cobalt Finch's capacity, proposal, unfinished transfer work, and uncertainty.

Kellan Brooks's July 7 damages report traces the \$1,350,000 original-lot component, \$850,000 replacement component, and \$2,000,000 bounded delay model. Dr. Elodie Park's August 4 report accepts the gross total conditionally and calculates \$1,800,000 in avoided delay less \$300,000 in alternative expense, yielding a \$1,500,000 proposed net deduction.

The discovery sources distinguish recorded facts from opinion. Device times, facility addresses, invoice relationships, and offer terms are authenticated through custodians. Product suitability, economic causation, reasonableness, and the probability of an accelerated campaign remain subjects for testimony and factfinding rather than automated conclusions.

Nothing in the four-page variation changes a deposition answer or expert opinion. Its assumed pre-verdict motions cite the evidence that already exists and provide a hypothetical opportunity to respond. The appendix retains the witnesses' concessions that Cobalt Finch offered real capacity, qualification was incomplete, success was not guaranteed, and no contemporaneous numerical probability was supplied.

Admitted exhibits and financial models

Seven documentary exhibits were admitted from October 7 through October 10. The shipment collection contains the logger curve, custody sequence, controller information, and contact chronology. The quality exhibit contains the limited assay, deviation, and September 16 disposition. A replacement schedule connects the rejected lot to the March 3 Aurora Quay campaign.

Two Cobalt Finch sources preserve the offer emails and program-specific qualification file. They show an October 2 proposal, a deadline on October 4 at 17:00, a December 2 manufacturing start, a \$300,000 working estimate, staged readiness work, and a November 22 decision gate. They also show elevated risk and no guaranteed outcome.

The remaining financial exhibits separate Blue Ember's \$4,200,000 gross computation from Granite Heron's mitigation model. The former totals original-lot cost, replacement expense, and bounded delay. The latter deducts alternative cost from claimed avoided delay and does not reduce the original-lot or replacement categories.

Admission did not compel a legal result. The jury could consider authenticity, limitations, contrary explanations, and burden allocation. The counterfactual motions assumed in the variation identify these same sources with specificity, yet the merits question remains whether the evidence permitted only the full \$1,500,000 net deduction.

Motions, verdict, and original judgment

The certified district record contains Granite Heron's October 10 initial Rule 50(a) motion and its October 14 close-of-evidence renewal. Both actual sources challenge causation only and say mitigation remains for the jury. The variation order does not replace, annotate, correct, or repaginate either motion.

The October 14 special verdict separately finds contract liability, proximate causation, \$4,200,000 in itemized gross damages, and a \$300,000 net mitigation deduction. The resulting October 15 judgment awards Blue Ember \$3,900,000. Those documents make the jury's decision-maker role and arithmetic independently visible.

Within this exercise alone, reviewers also consider the assumed pre-verdict mitigation language stated in the record-variation order. The assumed request identifies the precise Cobalt Finch theory and \$1,500,000 relief twice, with an opportunity for Blue Ember to answer. That premise supplies preservation but does not change the verdict or original judgment.

The index therefore maintains two propositions at once: the actual motions are causation-only, and the never-filed branch analyzes what would follow if mitigation had been specified. Counsel certify that no one may cite the variation as evidence that the district judge or either party actually made those statements.

Posttrial disposition, appeal, and notice

Granite Heron filed its combined Rule 50(b) and Rule 59 motion on November 10, 2025. Blue Ember opposed on November 24, Granite Heron replied December 1, and Judge Miriam D. Carver heard argument December 8. Those dates and the contents of the posttrial submissions remain fixed.

On December 15, the district court granted mitigation JMOL, replaced the jury's \$300,000 deduction with \$1,500,000, and entered a \$2,700,000 amended judgment. It also conditionally granted a new trial on gross damages and mitigation if renewed judgment later ceased to control. Liability and causation were excluded from the conditional scope.

Blue Ember filed its notice of appeal January 12, 2026, and the district clerk certified the record January 13. The timely posttrial motion had restarted the civil appeal period. The February 2 counterfactual order leaves those appellate-jurisdiction facts intact and merely defines the premise for branch briefing.

The branch appendix does not include events from the separate actual appeal. It uses the never-occurred docket caption on every source and keeps its briefing, on-briefs submission, opinion, judgment, and possible mandate routes isolated. The only district record is the single certified collection described above.

Joint certification and isolation controls

Maya Holt and Eli Mercer certify that the indexed district sources are complete for the questions presented. Jonas Bell and Tara Webb reviewed titles, dates, pagination allocations, and source relationships. Counsel found no missing leaf, duplicate document, unexplained identifier change, or alteration to the certified lower record.

Counsel separately certify that the express-preservation variation is fictional. It is stored after the actual district collection, bears both required warnings, and uses only the counterfactual docket. Its four pages assume two mitigation motions and a cure opportunity; they do not state that either event occurred.

The joint appendix contains no raw device software, laboratory system, audio, or video. Searchable documentary renderings describe authenticated outputs without asking the application to infer temperature effect, biological suitability, manufacturing success, or damages. Those evidentiary limits remain the same in the branch. The index supplies navigation and provenance, never a substitute factual conclusion.

The parties served this index electronically on March 9, 2026. Certification establishes completeness and isolation, not agreement on mitigation merits. Blue Ember continues to argue that the jury's deduction was rational; Granite Heron continues to argue that the preserved record compels \$1,500,000 and affirmance of the amended judgment.